The State Bar
of California

OFFICE OF CHIEF TRIAL COUNSEL

180 Howard Street, San Francisco, CA 94105 415-538-2218 danielle.lee@calbar.ca.gov

January 21, 2026

Nuha Sayegh
5132 Rosemead Blvd.
San Gabriel, CA 91776
nuha@recovery-compass.org

RE: Case Number: 25-O-31158
Respondent: Kirk A. Kolodji

Dear Nuha Sayegh:

The State Bar's Office of Chief Trial Counsel has reviewed your complaint against Kirk A. Kolodji to determine whether there are sufficient grounds to prosecute a possible violation of the State Bar Act and/or Rules of Professional Conduct.

You hired Kolodji to represent you in your family law proceeding. You allege that he was negligent in drafting the Findings and Orders After hearing in your matter, that he charged an excessive or unjustified fee in the amount of $13,347.00 for the restraining order matters, abandoned you and stopped representing you, engaged in a conflict of interest by representing himself concerning his attorney fees, aided the unauthorized practice of law by allowing his unlicensed brother, to direct legal strategy and bill at paralegal rates, and harassed you via texts on 11/23/25 and 11/26/25.

You provided a declaration from Eric B. Jones that said that, in your initial meeting, Kolodji related that his brother was working on the groundwork for a supplemental declaration, which meant that the brother was actively drafting declarations, and that the brother gave his opinion in a meeting about the sufficiency of pleadings, and what the case strategy should be, and Kolodji, who was present, did not disavow his brother's statements.

Based on our evaluation of the information provided, we are closing your complaint.

It is misconduct for an attorney to intentionally, repeatedly or recklessly fail to perform legal services with competence. Tactical decisions about case strategy, however, including whether

to use certain evidence, make a specific objection, or file a particular motion, are left to the discretion of the attorney. Mistakes and errors in judgment, or simple negligence, however, do not rise to the level of disciplinable conduct. An attorney's obligations prohibit them from contacting the opposing party who is represented, not his former clients.

If there is a conflict with the attorney's own interests, the attorney is ethically obligated to withdraw from representation, which is what he did. Because your matter was pending before a court, your attorney had to ask the court's permission to withdraw from your case, and, in this case, the court granted the request.

An attorney's ethical obligations do not prevent him from representing his own interests to get paid for his work. An attorney's obligations do not prevent him from charging an excessive fee. As his request for fees was before the court, the court has already ordered the amount of fees that you claim is excessive to be paid to Kolodji.

As long as nonattorney work is reviewed and ratified by the attorney, attorneys are allowed to use nonattorney staff to do work and bill them at nonattorney rates.

This conclusion is not a determination regarding the effectiveness of the attorney's representation in your matter. If you believe the attorney has committed simple negligence, you are free to pursue a malpractice action against your attorney. Please also be advised that this determination has no bearing on the merits of your case. Rather, the specific facts provided do not support a reasonable probability that the State Bar could establish clear and convincing evidence to support a finding that this attorney violated the State Bar Act or the Rules of Professional Conduct.

For these reasons, the State Bar is closing this matter.

If you have new facts and circumstances that you believe may change our determination to close your complaint, you may submit a written statement with the new information to the Intake Unit for review. If you have any questions about this process, you may call Trial Counsel Danielle Lee at 415-538-2218. If you leave a voice message, be sure to clearly identify the lawyer complained of, the case number assigned, and your telephone number including the area code. We should return your call within two business days.

If you have presented all of the information that you wish to have considered, and you disagree with the decision to close your complaint, you may request that the State Bar's Complaint

Review Unit review your complaint. The Complaint Review Unit will recommend that your complaint be reopened if it determines that further investigation is warranted. To request review by the Complaint Review Unit, you must submit your request in writing, either:

1) Via email: Within 90 days of the date of this letter, by email to: CRU@calbar.ca.gov; or

2) Via United States Mail: Post-marked within 90 days of the date of this letter, by United States Mail to:

The State Bar of California
Complaint Review Unit
Office of General Counsel
180 Howard Street
San Francisco, CA 94105-1617

If you decide to send new information or documents to this office, the 90-day period will continue to run during the time that this office considers the new material. You may wish to consult with legal counsel for advice regarding any other available remedies. You may contact your local or county bar association to obtain the names of attorneys to assist you in this matter.

We would appreciate if you would complete a short, anonymous survey about your experience with filing your complaint. While your responses to the survey will not change the outcome of the complaint you filed against the attorney, the State Bar will use your answers to help improve the services we provide to the public. The survey can be found at https://www.surveymonkey.com/r/HJGKWY7.

Thank you for bringing your concerns to the attention of the State Bar.

Sincerely,

Danielle Lee

Danielle Lee
Trial Counsel

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